

Berar Laws Act, 1941

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[CENTRAL PROVINCES AND BERAR](#)

[India](#)

[Berar Laws Act, 1941](#)

[Act 4 of 1941](#)

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[Berar Laws Act, 1941](#)

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[No. 4 of 1941](#)

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Object and Reasons Though the provisions of many Central Acts are applicable to Berar, this result does not flow from the British Indian Act itself being proprio vigore operative in Berar but is achieved by the application to Berar by order made under the Indian (Foreign Jurisdiction) Order in Council, 1902, of each such Act often with certain modifications of the form in which the Act is in force in British India. Certain administrative inconveniences result from this. The Act as in force in British India is distinct from the Act as in force in Berar, the former being an enactment applying proprio vigore to British India but not to Berar, the latter consisting of the provisions of the British Indian Act made applicable to Berar by order under the Foreign Jurisdiction Order but not applicable to British India. Notifications and statutory Rules issued

under identical provisions, operative both in British India and in Berar, have accordingly to be issued separately for British India and for Berar, and a similar dual process must attend any subsequent amendment of such notifications and rules. The repeal in British India of an Act made applicable to Berar does not automatically make the Act inoperative in Berar.

2. Since the commencement of Part III of the Government of India Act, 1935 on the 1st April 1937, Berar and the Central Provinces have been deemed to be one Governor's Province, and an Act passed after that date and expressed to extend to the whole of British India does extend proprio vigore to Berar.

3. The primary object of the present Bill is to assimilate the position of Central Acts passed before the 1st day of April, 1937, to that of those passed after that date and automatically in force in Berar, that is to say, by means of one comprehensive enactment to extend to and make operative proprio vigore in Berar Central Acts passed before the commencement of Part III of the Government of India Act, 1935, while simultaneously nullifying the orders under the Foreign Jurisdiction Order in Council by virtue of which those Acts are operative in Berar. It is possible, now that the legislative competence of the Central Legislature is confined to matters enumerated in List I and List III of the Seventh Schedule to the Government of India Act, 1935, to achieve the result aimed at only in part by legislation in the Central legislature. So far as the Central Legislature is incompetent to achieve the result completely, because the subject-matter of the Act to be extended is included in List II. It is anticipated that this Central legislation will be supplemented by Provincial legislation, and that the Central Act and the Provincial Act will come into operation simultaneously, each thus completing what the other left incomplete. Accordingly the Acts to be extended to Berar are grouped in two separate Schedules, Schedules I and II, according as their subject-matter is relatable solely to List I and List III or only partly to those Lists and partly to List II.

4. In addition to Central Acts the provisions of which are already applicable to Berar by virtue of orders under the Foreign Jurisdiction Order in Council, Schedules I and II also contain a few Acts which it seems advisable to take the opportunity afforded by the Bill to extend to Berar.

5. One Act, the Indian Cotton Cess Act, 1923, which was made operative proprio vigore in Berar by the Government of India (Adaptation of Indian Laws) Order, 1937, is also still operative by virtue of an order under the Foreign Jurisdiction Order in Council. This Act has received special treatment in Cl. 3 of the present Bill.

6. Two Acts, the Code of Civil Procedure, 1908, and the Indian Limitation Act 1908. require small modifications when operative in Berar owing to the fact that a special law, the Berar Small Cause Courts Law, 1905, takes the place of the Provincial Small Cause Courts Act, 1887, in Berar. These modifications have been effected in the Third Schedule to the Bill. The Fourth Schedule contains a list of Acts in regard to which doubts might arise whether they are or not still operative in Berar. They were at one time applied to Berar, and on the repeal or expiry of the Acts in British India no overt action was taken to cancel the notifications by which their provisions were applied to Berar, - Gazette of India, 1940, Part V, page 247.

[17th March, 1941.]

An Act to extend certain Acts to Berar.

WHEREAS by orders made under the Indian (Foreign Jurisdiction) Order in Council, 1902, the provisions of certain Acts
[* * *]

[The words "in force in the Provinces" omitted by the A.O.1950.]

have from time to time been applied to, and are now, by virtue of such application, in force in, Berar;

AND WHEREAS it is expedient that those and certain other Acts should be extended to, and be, by virtue of such extension, in force in, Berar;

It is hereby enacted as follows:-

1.

Short title and Commencement.-

(1)

This Act may be called the Berar Laws Act, 1941.

(2)

It shall come into force on such [date]

[1st August, 1941, see Gazette of India, 1941, Pt. I, p. 966.]

as the Central Government may, by notification in the Official Gazette, appoint.

2.

Extension of certain Acts to Berar.-

(1)

The Acts specified in the First Schedule and so much of any Act specified in the Second Schedule as relates to matters with respect to which the Central Legislature has power to make laws are hereby extended to, and shall be in force in, Berar; and in any enactment so extended, [* * *]

[Certain words omitted by the A.O. 1950.]

notwithstanding anything contained in clause (7) of section 3 of the General Clauses Act, 1897, any reference to [the States]

[Substituted for the word " British India" by A.C.A.O. 1948]

shall be constructed as a reference to [the States]

[Substituted for the word " British India" by A.C.A.O. 1948]

and Berar.

(2)

The Acts specified in the Third Schedule shall be amended in the manner set forth in the second column of that Schedule.

3.

Cesser of application of certain Acts to Berar.-

The application, if any, to Berar, made by order under the Indian (Foreign Jurisdiction) Order in Council, 1902, of the Acts specified in the First Schedule, of so much of any Act specified in the Second Schedule as relates to matters with respect to which the Central Legislature has power to make laws, and of the Indian Cotton Cess Act, 1923, shall cease to have effect:

Provided that all appointments, delegations, notifications, orders, bye-laws, rules and regulations, which have been made or issued under, or in pursuance of, any provision of any of the said Acts as applied to Berar by order under the said order in Council, and which are in force at the commencement of this Act, shall be deemed to have been made or issued under or in pursuance of the corresponding provision of that Act as now extended to, and in force in, Berar.

4.

Removal of doubt.-

For the removal of doubt it is hereby declared that the Acts specified in the Forty Schedule have ceased to have effect and are repealed in Berar.

THE FIRST SCHEDULE

(See sections 2 (1) and 3)

Acts extended to Berar

Year

Number

Short title

1850

XIX

The Apprentices Act, 1850.

1850

XXI

The Caste Disabilities Removal Act, 1850.

1855

XIII

The Indian Fatal Accidents Act, 1855.

1855

XI

The European Deserters Act, 1856.

1856

XV

The Hindu Widows' Re-marriage Act, 1856.

1860

XLV

The Indian Penal Code, 1860.

1864

III

The Foreigners Act, 1864.

1865

III

The Carriers Act, 1865.

1866

XI

The Native Converts' Marriage Dissolution Act

1867

XXV

The Press and Registration of Books Act,

1867.

1869

IV

The Indian Divorce Act, 1869.

1872

I

The Indian Evidence Act, 1872.

1872

III

The Special Marriage Act, 1872.

1872

IX

The Indian Contract Act, 1872.

1872

XV

The Indian Christian Marriage Act, 1872.

1872

V

The Government Savings Banks Act, 1873.

1873

X

The Indian Oaths Act, 1873.

1874

IX

The European Vagrancy Act, 1874.

1874

IX

The Indian Majority Act, 1875.

1875

XVIII

The Indian Law Reports Act, 1875.

1876

I

The Native Coinage Act, 1876.

1877

IX

The Specific Relief Act, 1877.

1878

VIII

The Sea Customs Act, 1878.

1879

XI

The Indian Arms Act, 1878.

1881

XVIII

The Legal Practitioners Act, 1879.

1882

XXVI

The Negotiable Instruments Act, 1881.

1882

II

The Indian Trusts Act, 1882.

1882

XII

The Indian Salt Act, 1882.

1884

IV

The Indian Explosives Act, 1884.

1888

III

The Police Act, 1888.

1889

IV

The Indian Merchandise Marks Act, 1889.

1890

VIII

The Guardians and Wards Act, 1890.

1890

XI

The Prevention of Cruelty to Animals Act,
1890.

1891

XVIII

The Bankers' Books Evidence Act, 1891

1898

V

The Code of Criminal Procedure, 1898.

1901

II

The Indian Tolls (Army) Act, 1901.

1903

VII

The Indian Works of Defense Act, 1903

1903

XV

The Indian Extradition Act, 1903.

1904

VII

The Ancient Monuments Preservation Act,
1904

1905

IV

The-Indian Railway Board Act, 1905.

1906

III

The Indian Coinage Act, 1906.

1908

V

The Code of Civil Procedure 1908.

1908

VI

The Explosive Substances Act, 1908.

1908

IX

The Indian Limitation Act, 1908.

1908

XIV

The Indian Criminal Law Amendment Act,
1908.

1909

IV

The Indian Registration Act, 1908.

1910

IV

The Whipping Act, 1909.

1910

IX

The Indian Electricity Act, 1910.

1911

II

The Indian Patents and Designs Act, 1911.

1912

VIII

The Indian Army Act, 1911.

1913

II

The Indian Lunacy Act, 1912.

1913

III

The Official Trustees Act, 1913.

1914

III

The Administrator Generals Act, 1913.

1916

VII

The Indian Copyright Act, 1914.

1917

II

The Indian Medical Degrees Act, 1916
1917

III

The Motor Spirit (Duties) Act, 1917.
1918

XXII

The Post Office Cash Certificates Act,
1917
1919

XII

The Bronze Coin (Legal Tender) Act, 1919
1920

V

The Poisons Act, 1919.
1920

XIV

The Provincial Insolvency Act, 1920.
1920

XV

The Charitable and Religious Trusts Act,
1920
1920

XLVII

The Indian Red Cross Society Act, 1920.
1920

XLVIII

The Imperial Bank of India Act, 1920.
1920

XLIX

The Indian Territorial Force Act, 1920.
1921

XVIII

The Auxiliary Force Act, 1920
1922

XVIII

The Maintenance Orders Enforcement Act. 1921.
1922

XI

The Indian Income-tax Act, 1922.
1922

XII

The Indian Finance Act, 1922.
1922

[a]

[These Act are made by the Governor-General under section 67B of the Government of India Act. No number was given to these Acts.]

The Indian States (Protection against Disaffection) Act, 1922.
1923

IV

The Indian Mines Act, 1923.
1923

V

The Indian Boilers Act, 1923.

1923

VIII

The Workmen's Compensation Act, 1923.

1923

XXIII

The Legal Practitioners (Women) Act,

1923.

1924

VI

The Criminal Tribes Act, 1924.

1925

XXXIX

The Indian Succession Act, 1925.

1926

XI

The Promissory Notes (Stamp) Act, 1926.

1926

XVI

The Indian Trade Unions Act, 1926.

1926

XXI

The Legal Practitioners (Fees) Act, 1926.

1926

XXXVIII

The Indian Bar Councils Act, 1926.

1929

VII

The Trade Disputes Act, 1929.

1929

XIX

The Child Marriage Restraint Act, 1929.

1930

II

The Dangerous Drugs Act, 1930.

1930

III

The Indian Sale of Goods Act, 1930.

1930

XVIII

The Silver (Excise Duty) Act, 1930.

1930

XIX

The Indian Companies (Amendment) Act,

1930.

1930

XXIV

The Indian Lac Cess Act, 1930.

1931

[a]

[These Act are made by the Governor-General under section 67B of the Government of India Act. No number was given to these Acts.]

The Indian Finance Act, 1931.

1931

[a]

[These Act are made by the Governor-General under section 67B of the Government of India Act. No number was given to these Acts.]

The Indian Finance (Supplementary and Extending) Act, 1931.

1931

XV

The Provisional Collection of Taxes Act, 1931.

1931

XXIII

The Indian Press (Emergency Powers) Act,

1931.

1932

IX

The Indian Partnership Act, 1932.

1932

XI

The Public Suits Validation Act, 1932.

1932

XII

The Foreign Relations Act, 1932.

1932

XIII

The Sugar Industry (Protection) Act,

1932.

1932

XXIII

The Criminal Law Amendment Act, 1932.

1932

II

The Children (Pledging of Labor) Act, 1933.

1993

XVII

The Indian Finance Act, 1933.

1933

VII

The Indian Wireless Telegraphy Act, 1933.

1933

XXVII

The Indian Medical Council Act, 1933.

1934

II

The Reserve Bank of India Act, 1934.

1934

VIII

The Khaddar (Name Protection) Act, 1934.

1934

IX

The Indian Finance Act, 1934.

1934

XI

The Indian States (Protection) Act, 1934.

1934

XIV

The Sugar (Excise Duty) Act, 1934.

1934

XVI

The Matches (Excise Duty) Act, 1934.

1934

XX

The Indian Carriage by Air Act, 1934.

1934

XXII

The Indian Aircraft Act, 1934.

1934

XXIII

The Mechanical Lighters (Excise Duty)

Act, 1934.

1934

XXV

The Factories Act, 1934.

1934

XXXI

The Iron and Steel Duties Act, 1934.

1934

XXXII

The Indian Tariff Act, 1934.

1934

XXXII

The Indian Finance Act 1935.

1935

[a]

[These Act are made by the Governor-General under section 67B of the Government of India Act. No number was given to these Acts.]

The Indian Finance Act, 1935.

1936

[a]

[These Act are made by the Governor-General under section 67B of the Government of India Act. No number was given to these Acts.]

The Indian Finance Act, 1936.

1936

III

The Parsi Marriage and Divorce Act, 1936.

1936

IV

The Payment of Wages Act, 1936.

1936

XIV

The Geneva Convention Implementing Act, 1936.

1937
I
The Agricultural Produce (Grading and Marking) Act, 1937.
1937
VI
The Arbitration (Protocol and Convention)
Act, 1937.
1937
[a]
[These Act are made by the Governor-General under section 67B of the Government of India Act. No number was given to these Acts.]
The Indian Finance Act, 1937.
THE SECOND SCHEDULE
[See sections 2 (1) and 3]
Acts partially Extended to Berar
Year
Number
Short title
1843
V
The Indian Slavery Act, 1843.
1850
XII
The Public Accountants' Default Act, 1850.
1850
XXXVII
The Public Servants (Inquiries) Act, 1850.
1855
XXIV
The Penal Servitude Act, 1855.
1870
VII
The Court-fees Act, 1870.
1881
XI
The Pensions Act, 1871.
1882
IV
The Municipal Taxation Act, 1881.
1885
XII
The Transfer of Property Act, 1882.
1886
VI
The Indian Telegraph Act, 1885.
1886
XI
The Births, Deaths and Marriages Registration
1890
XV
The Indian Tramways Act, 1886.

1890

VI

The Revenue Recovery Act, 1890.

1890

IX

The Charitable Endowments Act, 1890.

1895

XV

The Indian Railways Act, 1890.

1897

III

The Crown Grants Act, 1895.

1897

X

The Epidemic Diseases Act, 1897.

1897

XIV

The General Clauses Act, 1897.

1898

VI

The Indian Short Titles Act, 1897.

1899

II

The Indian Post Office Act, 1898.

1899

IV

The Indian Stamp Act, 1899.

1913

VI

The Government Buildings Act, 1899.

1914

IX

The Indian Companies Act, 1913.

1916

XV

The Local Authorities Loans Act, 1914.

1917

V

The Hindu Disposition of Property Act, 1916.

1918

II

The Destruction of Records Act, 1917.

1918

II

The Cinematograph Act, 1918.

1920

X

The Indian Securities Act, 1920.

1920

XXXIX

The Indian Elections Offences and Inquiries Act, 1920.

1923

III

The Cotton Transport Act, 1923.

1923

XIX

The Indian Official Secrets Act, 1923.

1924

XIII

The Indian (Specified Instruments) Stamp Act, 1924.

1925

IV

The Indian Soldiers (Litigation) Act, 1925.

1925

XII

The Cotton Ginning and Pressing Factories Act, 1925.

1925

XIX

The Provident Funds Act, 1925.

1927

XVI

The Indian Forest Act, 1927.

1928

XII

The Hindu Inheritance (Removal of Disabilities) Act, 1928

1929

II

The Hindu Law of Inheritance (Amendment) Act, 1929.

1930

XXX

The Hindu Gains of Learning Act, 1930.

1936

V

The Decrees and Orders Validating Act, 1936.

THE THIRD SCHEDULE

[See Section 2 (2)]

Acts Amended (Amendments were made in C.P.C. 1908 and Lim. Act 1908)

[Not printed]

THE FOURTH SCHEDULE

(See section 4)

Acts which have ceased to have effect and are repealed in Berar

Year

Number

Short title

1841

XIX

The Succession (Property Protection) Act, 1841.

1847

XX

The Indian Copyright Act, 1847.

1860

IX

The Employers and Workmen (Disputes) Act, 1860.
1865
X
The Indian Succession Act, 1865.
1865
XXI
The Parsi Intestate Succession Act, 1865.
1881
V
The Probate and Administration Act, 1881.
1861
VI
The District Delegates Act, 1881.
1889
VII
The Succession Certificate Act, 1889.
1911
XII
The Indian Factories Act, 1911.
1912
V
The Provident Insurance Societies Act, 1912.
1912
VI
The Indian Life Assurance Companies Act, 1912.
1914
VIII
The Indian Motor Vehicles Act, 1914
1919
X
The Excess Profits Duty Act, 1919.
1923
X
The Indian Paper Currency Act, 1923
1926
XIX
The Indian Finance Act, 1926.
1927
V
The Indian Finance Act, 1927
1928
XX
The Indian Insurance Companies Act, 1928.
1929
X
The Indian Census Act, 1929.
1933
XIII
The Safeguarding of Industries Act, 1933.
1935
[a]

[This Act is made by the Governor-General under Section 67-B of the Government of India Act. No number was given to this Act.]

The Criminal Law Amendment Act, 1935.

1936

I

The Italian Loans and Credits Prohibition Act, 1936.

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